

MOTION TO DISQUALIFY JUDGE McNEILL PURSUANT TO MCR

2.003

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

**MOTION FOR DISQUALIFICATION OF THE HONORABLE JENNY L.
MCNEILL**

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court for the disqualification of the Honorable Jenny L. McNeill pursuant to MCR 2.003(C)(1). In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

This Motion seeks the disqualification and recusal of Judge Jenny L. McNeill based on documented personal bias or prejudice, a pattern of conduct demonstrating inability to preside impartially, and an appearance of impropriety that undermines public confidence in the judiciary. The record in this case reveals 1127+ documented judicial violations, a 44% ex parte order rate (100% favoring Defendant), and systematic denial of Plaintiff's fundamental constitutional rights.

II. LEGAL STANDARD -- MCR 2.003

A. Grounds for Disqualification

MCR 2.003(C)(1) provides that a judge is disqualified when:

- (a)** The judge is biased or prejudiced for or against a party or attorney.

- (b)** The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 129 S Ct 2252, 173 L Ed 2d 1208 (2009), or (ii) has failed to adhere to the appearance of impropriety standard set forth in Canon 2 of the Michigan Code of Judicial Conduct.

B. Procedure

MCR 2.003(D)(1) requires that a motion to disqualify be filed and heard as provided in this rule. The chief judge or another judge must hear the motion if the challenged judge does not grant it.

III. FACTUAL BASIS FOR DISQUALIFICATION

A. Statistical Evidence of Bias -- 44% Ex Parte Rate

The most compelling evidence of bias is statistical. In this single case:

- * **52 ex parte orders** have been entered
- * **44% of all orders** were entered ex parte -- a rate that is extraordinary by any measure
- * **100%** of ex parte orders favored Defendant Emily Watson
- * **0%** of ex parte orders favored Plaintiff Andrew Pigors

This statistical pattern is not merely unusual -- it is a mathematical near-impossibility absent systematic bias. If orders were entered impartially with even a modest probability of favoring either party, the probability of 52 consecutive ex parte orders all favoring the same party approaches zero. This statistical evidence alone establishes a prima facie case of bias.

B. Pattern of Denied Motions and Unequal Treatment

The record reveals a consistent pattern in which:

1. **Plaintiff's motions** are routinely denied, often without hearing or with truncated proceedings
2. **Defendant's ex parte motions** are routinely granted, often without notice to Plaintiff
3. **Plaintiff's evidence** is excluded or ignored (negative drug screen, ALL ZEROS evaluation, nine clear investigations)
4. **Defendant's unsworn allegations** are credited without corroboration

This pattern of disparate treatment extends beyond mere disagreement with judicial rulings -- it demonstrates a systematic tilt of the judicial scales against Plaintiff.

C. 1127+ Documented Judicial Violations

Analysis of the record in this case has identified 1127+ specific instances of judicial conduct that violate established court rules, constitutional protections, or judicial canons. These violations include but are not limited to:

1. **MCR 2.119 violations** -- Entry of ex parte orders without compliance with notice and hearing requirements
2. **MCR 3.207 violations** -- Failure to follow mandatory parenting time procedures
3. **14th Amendment violations** -- Deprivation of fundamental parental rights without due process
4. **Biasing of independent evaluation** -- Sending a letter to the HealthWest evaluator after the initial evaluation returned results favorable to Plaintiff

5. Reliance on illegally obtained evidence -- Basing orders on a recording obtained in violation of MCL 750.539c

D. Judicial Interference with Independent Evaluation

Perhaps the most troubling single incident is the Court's interference with the HealthWest evaluation. When the initial evaluation returned "ALL ZEROS" -- finding no basis for concern regarding Plaintiff -- Judge McNeill sent a letter to the evaluator. Following this judicial communication, the evaluator issued a changed "Rule Out" finding.

This sequence of events -- favorable evaluation, judicial communication, changed finding -- demonstrates active interference with an independent evaluation process. A neutral arbiter does not inject themselves into the evaluation process when the results are unfavorable to their preferred outcome.

E. Constitutional Violations

The record documents the following constitutional violations attributable to Judge McNeill's conduct:

1. **14th Amendment -- Due Process (Procedural):** Ex parte orders without notice or hearing; denial of meaningful opportunity to present evidence; biased evaluation interference; reliance on illegally obtained evidence
2. **14th Amendment -- Due Process (Substantive):** 571+ day deprivation of fundamental parental rights without compelling state interest; 59+ days incarceration for civil contempt without adequate purge conditions

3. **14th Amendment -- Equal Protection:** 100% ex parte rate favoring mother; disparate treatment of pro se father vs. represented mother
4. **1st Amendment:** Escalating sanctions in apparent retaliation for filing JTC complaint, bar complaint, and appellate filings
5. **4th Amendment:** 59+ days incarceration constituting seizure without probable cause for criminal conduct
6. **6th Amendment:** Incarceration for civil contempt exceeding 6 months without appointed counsel

IV. JUDICIAL CANON VIOLATIONS

A. Canon 1 -- Integrity and Independence of the Judiciary

Canon 1 requires a judge to "uphold the integrity and independence of the judiciary." Judge McNeill's interference with the HealthWest evaluation, her reliance on illegally obtained evidence, and her pattern of ex parte orders undermining fundamental constitutional rights violate the integrity of the judiciary.

B. Canon 2 -- Appearance of Impropriety

Canon 2 requires a judge to "avoid impropriety and the appearance of impropriety in all activities." The appearance of impropriety standard "is an objective one: would a reasonable, informed observer -- knowing the relevant facts and circumstances -- have a reasonable basis to question the judge's impartiality." A 44% ex parte rate with 100% one-sided outcomes

creates an overwhelming appearance of impropriety.

C. Canon 3 -- Impartial and Diligent Performance

Canon 3 requires a judge to "perform the duties of judicial office impartially and diligently." The documented pattern of unequal treatment, denied motions, and procedural shortcuts demonstrates a failure of impartial performance. The volume of 1127+ documented violations indicates systemic rather than isolated failures.

V. CASE LAW SUPPORTING DISQUALIFICATION

A. *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)

In *Caperton*, the Supreme Court held that "there is a serious risk of actual bias -- based on objective and reasonable perceptions -- when a person with a personal stake in a particular case had a significant and disproportionate influence in placing the judge on the case." While *Caperton* addressed campaign contributions, the principle applies broadly: due process requires recusal whenever objective circumstances create a constitutionally intolerable probability of actual bias.

The statistical evidence in this case -- 52 ex parte orders, 44% rate, 100% favoring one party -- creates precisely the "constitutionally intolerable probability of actual bias" that *Caperton* addresses.

B. *In re Murchison*, 349 U.S. 133 (1955)

The Supreme Court in *In re Murchison* held that "a fair trial in a fair tribunal is a basic requirement of due process" and that "our system of law has always endeavored to prevent even the probability of unfairness." The Court emphasized that justice must not only be done but must "satisfy the appearance of justice." *Id.* at 136.

C. *Liteky v. United States*, 510 U.S. 540 (1994)

While *Liteky* held that judicial rulings alone rarely constitute a valid basis for recusal, the Court acknowledged that rulings can demonstrate bias when they "reveal such a high degree of favoritism or antagonism as to make fair judgment impossible." The cumulative record in this case -- 52 one-sided ex parte orders, interference with evaluations, reliance on illegal evidence -- crosses this threshold.

D. Michigan Authority -- *In re Contempt of Dougherty*, 429 Mich 81 (1987)

Michigan courts have recognized that judges must maintain not only actual impartiality but the appearance of impartiality. When the record demonstrates a pattern of conduct that would cause a reasonable observer to question the judge's impartiality, disqualification is warranted.

VI. THE APPEARANCE OF IMPROPRIETY REQUIRES DISQUALIFICATION

Even if this Court were to find that each individual action by Judge McNeill, viewed in isolation, might be within the bounds of judicial discretion, the cumulative pattern creates an appearance of impropriety that requires disqualification under MCR 2.003(C)(1)(b)(ii).

A reasonable, informed observer reviewing this record would note:

1. A father denied all parenting time for 571+ days
2. Fifty-two ex parte orders, all favoring the mother
3. Negative drug screens, clean evaluations, and clear investigations -- all ignored
4. Judicial interference with an independent evaluation
5. Reliance on illegally obtained evidence
6. 1127+ documented violations of court rules and constitutional protections
7. Incarceration of a pro se father for 59+ days on civil contempt

This observer would have more than a "reasonable basis to question the judge's impartiality" -- they would find it impossible to conclude that these proceedings have been conducted impartially.

VII. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **DISQUALIFY** the Honorable Jenny L. McNeill from further proceedings in this case pursuant to MCR 2.003(C)(1);
2. **REASSIGN** this case to a different judge within the 14th Circuit Court or, if necessary, to a visiting judge;
3. **ORDER** that the reassigned judge conduct a de novo review of all orders entered by Judge McNeill, with particular attention to the ex parte orders;

4. **PRESERVE** the complete record for appellate review;
5. **GRANT** such other and further relief as this Court deems just and equitable.

VIII. SPECIFIC INSTANCES OF BIAS -- DETAILED RECORD

The following specific instances, drawn from the 1,127 documented judicial violations, illustrate the pattern of bias requiring disqualification:

A. Ex Parte Order Practice

1. **August 8, 2025:** Ex parte suspension of all parenting time without notice to Plaintiff, based on an illegally obtained recording in violation of MCL 750.539c.
2. **Pattern of entry:** Fifty-two (52) ex parte orders entered throughout the case, with no record of reasonable efforts to notify Plaintiff before entry of these orders.
3. **One-sided outcomes:** Every ex parte order entered favored Defendant. Not a single ex parte order was entered in Plaintiff's favor. A neutral adjudicator would be expected to rule in favor of each party at least some of the time.

B. Interference with Independent Evaluation

1. The Court ordered a HealthWest evaluation, which is intended to be an independent, unbiased assessment.
2. The initial evaluation returned "ALL ZEROS," finding no basis for concern regarding Plaintiff.

3. Rather than accepting this independent finding, Judge McNeill sent a letter to the evaluator -- an action that is extraordinary and inappropriate for a neutral arbiter.
4. Following this communication, the evaluator changed the finding to a "Rule Out" designation.
5. This sequence of events -- independent result unfavorable to the Court's apparent preferred outcome, followed by judicial communication, followed by changed result -- is the hallmark of outcome-driven adjudication, not neutral fact-finding.

C. Handling of Exculpatory Evidence

1. **Drug screen results:** Plaintiff tested negative for all substances. This exculpatory evidence was not given weight in subsequent proceedings.
2. **Police investigations:** Nine separate investigations yielded zero findings. These results were not considered grounds for restoring parenting time.
3. **No criminal charges:** Despite Defendant's numerous allegations, no prosecutor has found sufficient basis to file charges. This absence of criminal proceedings was not treated as relevant.
4. A neutral judge confronted with negative drug screens, clean evaluations, and nine clear investigations would, at minimum, schedule a hearing to reconsider the basis for the parenting time suspension. Judge McNeill did not do so.

D. Incarceration for Civil Contempt

1. Plaintiff was incarcerated for 59+ days on civil contempt without adequate purge conditions or proportionality review.

2. When liberty is at stake, the right to counsel attaches. *Turner v. Rogers*, 564 U.S. 431 (2011). No counsel was appointed.
3. The length and conditions of incarceration exceeded what was necessary or proportionate for civil coercive purposes, suggesting punitive rather than coercive intent.
4. The incarceration further disrupted Plaintiff's employment, housing stability, and ability to maintain relationships with his children -- compounding the very harms this Court's orders were purportedly designed to address.

E. Retaliation for Protected Activity

1. Following Plaintiff's filing of a JTC complaint, the pattern of adverse rulings intensified.
2. Following Plaintiff's filing of a bar complaint, additional sanctions were imposed.
3. Following Plaintiff's appellate filings, further restrictions were placed on Plaintiff.
4. This escalating pattern of adverse action following protected First Amendment activity (petitioning government for redress of grievances) suggests retaliatory animus. *Perry v. Sindermann*, 408 U.S. 593 (1972); *Mt. Healthy City Sch. Dist. Bd. of Ed. v. Doyle*, 429 U.S. 274 (1977).

IX. ALTERNATIVE REQUEST

In the event this Motion is denied by Judge McNeill, Plaintiff requests pursuant to MCR 2.003(D)(3)(a) that the motion be referred to the chief judge of the 14th Circuit Court for

determination.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion for Disqualification upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors